

Code of Ethics

AIESEC in Pakistan

National Compendium

The principles of AIESEC's Code of Ethics consists of overall adherence to integrity, excellence, transparency, accountability, and respect for human dignity. This Code of Ethics will be applicable across the whole national network.

At AIESEC we condemn any behaviour that causes harm to any of our stakeholders. We encourage whistleblowing. Each member is responsible for reading, understanding and following the code of ethics. Members who violate the code are subject to discipline upto and including termination from their positions in AIESEC.

1. Independence

We shall always be able to act in a manner consistent with our The AIESEC Way, without limitation from external pressures. Our membership should be involved in our major decision-making processes.

1.1. Political interferences- We aim to be politically independent: no partnership shall commit us to a direct political agenda. We will not allow any political movements to influence or interfere with the political neutrality that is crucial to the nature of AIESEC. Our governance, programs and policies shall be non- partisan, independent of specific governments, political parties and the business sector. In addition, we will diversify our sources of income so as not to become dependent on any one source that could compromise our AIESEC Way.

1.2. "Political agenda has been defined as supporting a political agenda in a country. E.g. Being involved in party politics etc."

2. Partnerships and Ethical fund raising

AIESEC seeks to partner with organizations that can assist us in developing characteristics in individuals that we believe are critical in creating change agents. We seek to work in genuine partnership with local communities, NGOs, companies and other organizations with awareness of sustainable development responding to local needs.

We shall not partner with organizations that directly promote war or violence. We shall not partner with organizations that discriminate on the basis of race, colour, sex, sexual orientation, creed, religion, and national or ethnic origin.

We shall not partner with organizations that negatively affect our image in the external environment. We recognize that organizational integrity extends to ensuring that our partners also meet the highest standards of organizations or persons involved in illegal or unethical practices. For example, companies engaged in the manufacture of tobacco and arms, as stated in AIESEC's international compendium.

- 2.1. Use of Donations- In raising funds, we will accurately describe our activities and needs. Our policies and practices must ensure that donations further contribute to our organization's mission. Where donations are made for a specific purpose, the donor's request is honoured. If we invite the general public to donate to a specific cause, each organization will have a plan for handling any shortfall or excess and will make this known as part of its appeal.
 - 2.2. Gifts in kind- Some donations may be given as goods or services. To retain our effectiveness and independence, we will: record and publish details of all major institutional gifts and gifts-in-kind; clearly describe the valuation and auditing methods used; and ensure that these gifts contribute towards our mission.
3. Relations with our stakeholders
 - 3.1. Relations with Local Committees- We consult actively with our members and local committees in the development and implementation of policies and activities that have an impact on them.
 - 3.2. Relations within teams and committees -We treat each other with respect and consideration. We communicate and consult with each other openly and collegially and in a manner that assists each of us to fulfil our duties and responsibilities faithfully and efficiently. We undertake to ensure adequate consultation with any member before making any decision, which may impact upon that staff member.
 - 3.3. Relations with external stakeholders- We commit to keeping our promises towards our stakeholders keeping in mind our value of excellence. The value of our reputation and name must be upheld whenever we represent AIESEC. All members and Alumni of AIESEC must interact with all stakeholders in a respectful and professional manner. Any kind of misconduct within AIESEC members or with externals while representing AIESEC will be a violation of the code of conduct. When speaking in a public setting or posting on the internet - including through social media you must make it clear that you are expressing your own views and opinions and not those of AIESEC. You must refrain from making remarks which are contrary to the values of AIESEC.
4. Equity and Diversity
 - 4.1. We value, respect and encourage diversity, and seek to be impartial and non-discriminatory in all our activities. To this end, each local committee will have policies that promote diversity, gender equity and balance, impartiality and non-discrimination in all our activities, both internal and external.
 - 4.2. We are committed to openness, transparency and honesty about ourselves. We communicate actively to stakeholders about ourselves and make relevant information publicly available.
5. Confidentiality

We will treat information obtained while working with AIESEC with confidentiality, when its nature calls for it or when it is explicitly requested and will not use any such information or materials to further a private interest. This obligation continues after separation from AIESEC. We will be as open as possible about all the decisions and actions we take, taking into account the

above-mentioned needs for confidentiality. Whistle blowing practices should be consistent with the regulations and outlines defined in the Pakistani law.

6. Protection of User and Personnel Data

Depending on your role in AIESEC, you may have access to information systems or tools that enable you to view certain information relating to users and other individuals (including your coworkers and other stakeholders), which would otherwise not be visible to you. These tools are important and necessary to enable you to perform your work effectively. However, it is of the utmost importance that this data access is treated with extreme sensitivity and caution.

- 6.1. You are only authorized to access this data to the extent it is required for you to do your job. This data is confidential and subject to privacy protections in many jurisdictions.
- 6.2. AIESEC's brand and the trust customers put in us depend on your responsible use of tools that allow you to view user information that would otherwise not be visible to you.
- 6.3. You should also refrain from sharing confidential information internally beyond those persons who legitimately need to know it for purposes of their job.
- 6.4. We have an open and transparent culture, and this is not intended to stifle the ongoing conversation and sharing that has facilitated so much of our success. Rather, you should use your judgment to share what is appropriate inside the organization in furtherance of your and others' jobs.
- 6.5. Always keep in mind that improper use or disclosure of confidential business information could seriously damage AIESEC's reputation with customers, business partners and the community and cause harm to our business.
- 6.6. If you become aware of unauthorized disclosure of confidential information kindly report it to your LCVP MXP or the Ethics Sub committee Chair.

7. Governance and professional management

We manage our organizations in a professional and effective manner. Our policies and procedures seek to promote excellence in all respects.

We should be held responsible for our actions and achievements. We will do this by: having a clear organizational structure and decision-making processes; acting in accordance with stated values and agreed procedures; and reporting on these outcomes in an open and accurate manner.

The governance structure of each AIESEC entity will conform to relevant laws and be transparent. We seek to follow principles of best practice in governance.

8. Each AIESEC entity:

- 8.1. Ensures that resources are used efficiently and appropriately, that performance is measured, that financial integrity is assured and that public trust is maintained.

- 8.2. Has written procedures covering the appointment, responsibilities and terms of members of the leadership team, and clear discharge mechanisms are in place.
- 8.3. Each AIESEC entity will have a supervisory body that gives input and advice, and also monitors the activities and finances, using their professional experience for the growth and development of the association.
- 8.4. Each AIESEC Entity shall respect the existence of other AIESEC Entities, and refrain from expanding its Governance, Professional Relations, and/or Business in the regions of other existing AIESEC Entities, without a formal consent of the involved Entities and AIESEC Pakistan MC.

9. Safe and healthy work environment

At AIESEC we are committed to providing a safe and healthy workplace for all members, exchange participants and partners. All members are responsible for keeping safety and health top of mind, and should: Promptly report unsafe or hazardous conditions to EB or MC. They have a legal and professional responsibility to provide members with a workplace that is free from recognized hazards that cause or are likely to cause serious physical or mental injury or death, and to maintain working conditions that are safe and healthful for their members.

9.1. Types of Hazards during work

- 9.1.1. Workplace Violence: Workplace violence is defined as any act or threat of physical violence, harassment, intimidation, disruptive or threatening behaviour that happens in the workplace. With such a wide range of acts that come under the violence umbrella, from written or physical abuse to theft or explosives. At AIESEC we want to create a safe working environment, this means any AIESEC event, GBMs, EWA, Portfolio meets, Partner meets, OPS, Conferences, are safe from any physical or mental threat to our members.
- 9.1.2. Workplace Bullying: Unlike violence, bullying is not random. Bullying is a targeted, persistent mistreatment of someone that is intended to humiliate, control or threaten their emotional, mental, or physical well-being. As often the bully is someone who has authority over the victim or by peers who are often operating within the established rules and policies of their organisation. At AIESEC we discourage such behaviour, if any one experiences such bullying they are advised to inform their immediate head who should take immediate action.
- 9.1.3. Psychosocial Hazards: Psychosocial hazards include those that can have an adverse effect on a member's mental health or wellbeing. For example, sexual harassment, victimisation, stress, accusation without proof and any way of making the members feel uncomfortable and unsafe. At AIESEC we condemn such behaviour.

10. Reporting

- 10.1. MCVP MXP along with the ESC Chair must create a report and present it at the legislative meetings on NPS and NLC. A copy of the report should be sent to the SG as well.

11. Conferences, Behaviour, rules and regulations
 - 11.1. All clauses in the compendium regarding conferences should be followed.
 - 11.2. Be respectful and considerate
 - 11.3. Respect personal space and common courtesy rules for personal interaction.
 - 11.4. Refrain from displaying any demeaning, harassing, aggressive, or intimidating message, materials or behaviour.
 - 11.5. Refrain from making any statements that would be disrespectful, misrepresenting, or otherwise harmful to any member in AIESEC or the venue management.
 - 11.6. Obey the rules and regulations of the venue.
 - 11.7. Don't litter the venue
 - 11.8. Don't break anything at the venue.
 - 11.9. Don't disturb other visitors at the venue
 - 11.10. Not to enter false or misleading information in their registration form
 - 11.11. If you are being harassed or you notice that someone else is being harassed, or have any other concerns, please contact any member of the conference team immediately.
 - 11.12. No drugs or alcohol on the venue, if found using these they will immediately be asked to leave the venue and strict disciplinary action will be taken afterwards.
 - 11.13. No leaving the conference venue except for the conference team who might need to leave the venue for certain reasons.
 - 11.14. In case of any emergency, members are allowed to leave the venue once after they have informed one of the MC members.
 - 11.15. Be present in all sessions
 - 11.16. Be on time to all session
 - 11.17. Delegates must pay conference fees before entering the venue or settle their payments with their LC as soon as possible.
 - 11.18. Sign and agree to the anti sexual harassment policy
 - 11.19. Sign and agree to the anti substance use policy
12. Audit
 - 12.1. Financial controls: Internal financial control procedures ensure that all funds are effectively used and minimize the risk of funds being misused. We shall follow principles of best practice in financial management.
 - 12.2. Evaluation: We seek continuously to improve our effectiveness. We have defined evaluation procedures for our boards, staff, programs and projects on the basis of mutual accountability.
 - 12.3. Process: Any LC failing to follow the auditing guidelines (iCX) set by the MC will be subject to a mandate fine along with an additional fine of PKR 2000 per unaudited form.
 - 12.4. Penalty: Any member of AIESEC in Pakistan engaging in the following activities shall be terminated from the organization after the National Ethics Committee has reviewed the whole case.
 - 12.4.1. Operations: Doing fake exchange, putting unaudited forms, Violating the XPP.
 - 12.4.2. Finance: Embezzlement of money, Tampering the data, forging the signatures.

12.4.3. Membership: Violating HR subdocument, Violating Pakistani constitutional rights.

13. Human Resources

We recognize that our performance and success reflect the quality of our staff, volunteers and management practices, and we are committed to investing in human resource development. Remuneration and benefits should strike a balance between public expectations of volunteer-based, not for-profit organization and the need to attract and retain the talent we need to fulfil our mission. Our human resources policies seek to conform fully to relevant international and national labour regulations and apply the best voluntary sector practices in terms of employee and volunteer rights, health and safety at work. Human resources policies will include procedures for evaluating the performance of all members on a regular basis.

14. Bribery and Corruption

Human resources policies will specifically prohibit acts of bribery or corruption by staff or other persons working for, or on behalf of the organization.

15. Respect for human dignity and Integrity

We condemn sexual exploitation, abuse and discrimination in all its forms. Our policies will respect human dignity and integrity in all our programs and activities, and prohibit gender harassment, sexual exploitation and discrimination.

16. Usage of Whistle-blowers

Members will be enabled and encouraged to draw management's attention to activities that may not comply with the law or our mission and commitments, including the provisions in this Code.

17. Conflict of Interest

In our work, conflict may arise between our personal interests and the interests of AIESEC or other stakeholders. We will disclose such a conflict and resolve it in a transparent manner.

Members in AIESEC are expected to use their judgment to act, at all times and in all ways, in the best interests of AIESEC. As such, AIESEC members should attempt to avoid actual or apparent conflicts of interest. A conflict of interest exists when your personal interests interfere with the best interests of AIESEC. For example, a conflict of interest may occur when you or a family member receive a personal benefit as a result of your position in AIESEC. Similarly, you may not use your position at AIESEC to request personal benefits for yourself or your family members. A conflict of interest may also arise from your personal relationship with a stakeholder. and certain personal relationships with other AIESEC members are discussed in more detail below. The best rule for any situation that appears to present a conflict of interest is to "abstain and disclose". If it is not possible to avoid participating in the event or activity creating the conflict avoid

participating in decisions that might raise the appearance of a conflict until you receive appropriate guidance. Some specific potential conflicts of interest to be mindful of are as follows:

- 17.1. Conflict of interest during recruitment:
During member recruitment, make sure that no personal advantages are given to any candidate if they are family or friends of a member. During member interviews, if a member personally knows the candidate for membership interview, avoid taking their interview. No candidate can join AIESEC unless they fulfill the recruitment criteria, no one has the authority to supersede the compendium for their personal advantage for themselves or anyone they know. We will consider only objective criteria when recruiting our members without preference for family and friends; recruitment procedures will follow fairness principles.
- 17.2. Conflict of interest with Exchange participants: No extra favours can be given to any EP where there is conflict of interest. All Exchange participants must adhere to the XPP.
- 17.3. Potentially Conflicting Relationships: AIESEC does not prohibit dating, nor does it prohibit relatives from working together within, for, or on behalf of AIESEC. However, if a potentially conflicting relationship, involves two members in a direct reporting relationship or in the same chain of command, and otherwise creates an actual or apparent conflict of interest, the members should at first avoid the conflict of interest, if not avoid, declare it and then try to work on mitigating the conflict of interest.
18. Usage of resources: We will use AIESEC resources and properties effectively, for no purpose other than for the advancement of AIESEC objectives.
19. Private activities: We will not engage in any activity or transactions or acquire any position or function, whether paid or unpaid, that is incompatible with or detracts from the proper performance of our duties, if that may negatively impact AIESEC's image. We will not use AIESEC business relationships to solicit or obtain favours or improper benefits in private life.
20. Market Breach
 - 20.1. Local Committees and Expansions cannot enter into market areas that are not allotted to them.
 - 20.2. If there is an issue of Outgoing Exchange Market Breach, the matter should be resolved between both the LCs and LCPs first, and try to reach a mutual agreement within 15 working days. If unable to find a mutual agreement, the LC which breached the market is liable to pay a mandate equal to the amount of the approval of that product, to the LC who's market was breached.
 - 20.3. In cases where a mutual agreement cannot be found, the case can be put forth to the National Ethics Committee to investigate and give a decision.
21. Decision Making

Make decisions fairly and to the best of our knowledge and understanding in any role. As per the principles of judicial review any decision should be free of the following three things

 - 21.1. Illegality: It should be in compliance with the National Compendium and the Country Law

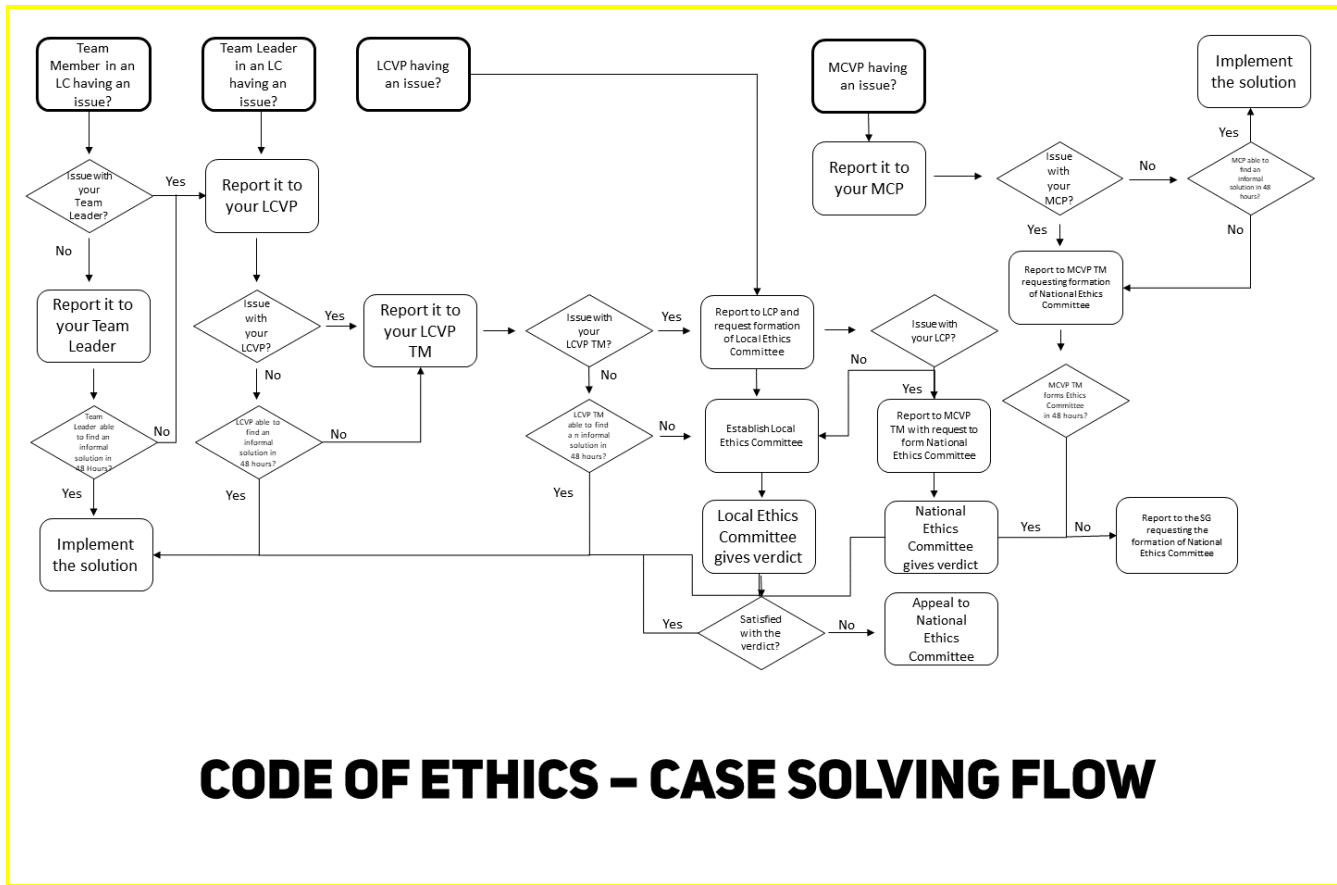
- 21.2. Irrationality: The decision should not be outrageously in its defiance of logic or accepted moral standards that no sensible person who had applied his mind to the question to be decided could have arrived at it
- 21.3. Procedural Impropriety: Any decision should be free of the following things:
 - 21.3.1. Bias in a sense that any fair-minded and informed observer, having considered the facts, would conclude that there was no real possibility of the decision being biased.
 - 21.3.2. The right to be heard was denied to a directly concerned party while making a decision.
 - 21.3.3. The right to provide reasoning behind a decision was denied to a directly concerned party after the decision was made.

22. Whistleblowing Mechanism Introduction:

The AIESEC Pakistan Whistleblowing Mechanism aims to clearly outline the principles and procedures related to the management of unethical activities across all the Local Committees of AIESEC in Pakistan.

- 22.1. The National Ethics Committee is an independent body within the purview of AIESEC Pakistan and responsible for any cases filed by the whistle-blowers.
- 22.2. Whistleblowing Mechanism is a system that shall be monitored by a committee appointed by MCP, to audit and provide a verdict of a mutual consent of the National Ethics Committee on cases as specified in this document.
- 22.3. All members of AIESEC Pakistan shall be enabled and encouraged to blow whistle and attract National Ethics Committee's attention to any wrongdoing by a single person or a group of individuals, towards activities that may not comply with the laws of the nation and/or the mission and commitments of AIESEC, including the provisions given under our Code of Ethics.
- 22.4. Any member can blow the whistle and has the right to choose if his/her Identity should be revealed or not at the time of investigation.
- 22.5. While filing the case, the whistleblower should reveal the identity to the National Ethics Committee or else the case shall not be taken forward.
- 22.6. If the National Ethics Committee reveals the identity without consent of Whistle Blower then the body shall be terminated from their role.
- 22.7. The Whistleblowing Mechanism shall also be used to make our membership aware and educate them about ethical behaviour and the organization's Code of Ethics.
- 22.8. Members should speak with anyone in their management chain, Local or national VP MXP when they have a question about the application of the Code of ethics or when in doubt about how to properly act in a particular situation.

23. Case Solving Flow



CODE OF ETHICS – CASE SOLVING FLOW

- 23.1. Scope of Local Ethics Committee
- 23.2. Cases against Members, Team Leaders, LCVs and Alumni
- 23.3. The local ethics committee shall decide if the accused needs to be suspended or not and the duration of the suspension shall also be determined by the Local Ethics committee
- 23.4. Team Member
- 23.5. Team members must report the issue to the team leader first or if the issue is with the team leader, report to your LCV directly.
 - 23.5.1 Any person who is reporting a case against anyone and possesses a practical proof including but not limited to any document, video, picture is supposed to inform other people who can be seen in the said document, video, picture before submitting it or sharing it with any official body
- 23.6. If satisfactory solution is not provided within 48 hours report to your LCV.
- 23.7. If satisfactory solution is not provided within 48 hours report to your LCV MXP or if issue is with LCV MXP report to your LCP.
- 23.8. If satisfactory solution is not provided within 48 hours request formation of Local Ethics Committee. If not satisfied with the verdict, the team member can appeal within 5 days to MCP MXP or ESC Chair.
- 23.9. Team Leader
- 23.10. Team leader must report issue to LCV,

- 23.11. If satisfactory solution is not provided within 48 hours report to your LCVP MXP,
- 23.12. If satisfactory solution is not provided within 48 hours or issue is with LCVP MXP report to your LCP.
- 23.13. If a satisfactory solution is not provided within 48 hours request formation of Local Ethics Committee.
- 23.14. If not satisfied with the verdict, the team leader can appeal within 5 days to MCVP MXP or ESC Chair.
- 23.15. LCVP
- 23.16. LCVP must report issue to LCP,
- 23.17. If satisfactory solution is not provided within 48 hours request formation of Local Ethics Committee,
- 23.18. If a satisfactory solution is not provided within 5 days appeal to MCVP MXP or ESC Chair.
- 24. Local Ethics Committee Composition
 - If a complaint is filed against a team member or team leader the committee shall comprise of:
 - 24.1. Local Committee President
 - 24.2. LCVP MXP (If the complainant is in a directly reporting relationship with LCVP MXP, then LCP shall appoint someone else from the EB who doesn't have a directly reporting relationship with the complainant).
 - 24.3. 1 member from sub committee (agreed upon by both parties involved)
 - 24.4. If a complaint is filed against an LCVP the committee shall comprise of:
 - 24.5. 2 members from sub committee
 - 24.6. 1 Alumni
- 25. Local Ethics Sub committee selection process
 - 25.1. LCP will open applications for 6 positions, once in January, and once in July.
 - 25.2. The application and selection process for Local Ethics Subcommittee Members in January will be managed by the LCP elect.
 - 25.3. All full members can apply
 - 25.4. The position will be held for 6 months
 - 25.5. The sub committee must have 3 female members and 3 male members
 - 25.6. At the end of the ESC term, outcome of all cases must be reported to the National ESC.
- 26. Scope of National Ethics Committee
 - 26.1. Case Appeal from Local Committee
 - 26.2. Cases against current or former LCPs/MC Members.
 - 26.3. The National ethics committee shall decide if the accused needs to be suspended or not and the duration of the suspension shall also be determined by the National Ethics committee.
 - 26.4. If a case is appealed to the National ESC the committee shall comprise of:
 - 26.5. MCVP MXP (If MCVP MXP has a directly reporting relationship with the complainant, they shall be replaced by the MCP)
 - 26.6. 1 National Ethics Sub Committee Member

- 26.7. 1 Alumni
- 26.8. If a case is filed against LCP, National Ethics Committee shall comprise of:
 - 26.8.1. MCVP TM
 - 26.8.2. 1 National Ethics Sub Committee Member
 - 26.8.3. 1 Alumni
- 26.9. If a case is filed against MCVP the National Ethics Committee shall comprise of:
- 26.10. 2 National Ethics Sub Committee Members
- 26.11. 1 Alumni/SG member
27. If a case is filed against MCP, the National Ethics Committee shall comprise of:
 - 27.1. 1 SG Member
 - 27.2. 1 National Ethics Sub Committee Member
 - 27.3. 1 Alumni
28. If a case against LCP, MCVP or MCP is to be appealed it will be forwarded to the
 - 28.1. Global Ethics Sub Committee
 - 28.2. Roles:
 - 28.3. The Committee shall give a response to all reported cases.
 - 28.4. The Committee is responsible to investigate all the cases that are described in this document according to the procedure described.
 - 28.5. In situations where a case involves a member of the Ethics Committee, this member shall be dis-allowed from participation in the Committee and shall be denied access to any information during the process and will play no role in decision making.
29. Rights to Final Decision :
 - 29.1. The final decision will be taken through a mutual consent of National Ethics Committee members.
 - 29.2. The Committee shall ensure that the entire process of Whistleblowing is confidential, and no information shall be given out unless a final decision has been made.
 - 29.3. The Committee shall manage and store all the cases on record for future reference, information and knowledge management.
 - 29.4. The term of National Ethics sub committee Chair will be from January to December.
30. PROCEDURE FOR BLOWING WHISTLE:

Every member of AIESEC Pakistan needs to be aware of the Whistleblowing Mechanism document.

 - 30.1. Local Committee Presidents must ensure awareness about the Whistleblowing Mechanism in their Local Committees.
 - 30.2. Local Committee Presidents must educate the members about the Code of Ethics of the organization and usage of the Whistleblowing mechanism in cases as described in this document.
 - 30.3. All members of AIESEC are required to cooperate fully with internal investigation, including providing honest, truthful and complete information.
31. Ethics Committee Procedures and Report:

- 31.1. The case must be reported with adequate proof(s): screenshots, pictures, emails, text messages or any kind of physical document.
- 31.2. The Committee must verify first the authenticity of the case. All proof related to the case must be submitted within 72 hours of confirmation of receipt of complaint by the National Ethics Committee. The case shall be closed in circumstances of lack of proof or invalid allegation. If proof has not been submitted, the Ethics Committee will conduct a basic investigation. If no proof can be recovered, the case shall be closed.
- 31.3. The Ethics Committee has the right to interview any person related to the case and gather the required information.
- 31.4. Once, the complaint is verified, the Committee must decide if the case is under its scope of action, that is whether it belongs to the kind of cases specified in this document.
- 31.5. The Ethics sub committee chair is responsible for the tracking of the implication of the verdict or solution provided.
- 31.6. The case shall be investigated and a final decision shall be made within 3 weeks from the date when the case had been accepted.
- 31.7. The Local Ethics Committee may ask for an extension from the LCVP MXP while keeping the sub committee in loop and if the reason is justified, a 1 week extension shall be granted.
- 31.8. The National Ethics Committee may ask for an extension from the ESC Chair or MCVP MXP and if the reason is justified a 1 week extension shall be granted.
- 31.9. A decision will be made with simple majority of the National Ethics Committee.
- 31.10. A report shall be compiled and communication of the decision along with the report to both parties involved is the duty of the National Ethics Committee.
- 31.11. In order to Appeal or report a case the email ID of ESC Chair or MCVP MXP shall be used.
32. TYPES OF CASES:
 - 32.1. Types of cases and implication shall be curated by the National Ethics Committee.
 - 32.2. Proof for every complaint and/or allegation by the person complaining shall be submitted to the National Ethics Committee in order to categorise the case and check if the case is authentic in nature.
33. Anti Harassment and Violence Policy
 - 33.1. Introduction
 - 33.2. AIESEC has approved the present "Harassment and Violence Policy" with the commitment of preventing and tackling sexual harassment, sex or gender-related harassment and/or psychological harassment, as this type of conduct represents a threat to the dignity of persons, damages the workplace atmosphere and has negative effect on the health, moral, confidence and self-esteem of individuals.
 - 33.3. With this in view, the present Protocol defines conducts to be avoided as well as specific measures aimed at prevention.
 - 33.4. It also explains how to process charges or claims that may be presented by individuals who have been victims of the said type of conduct.
 - 33.5. Consequently, an efficient and agile investigation procedure has been established that will be implemented when the said type of conduct is reported. The said procedure

should guarantee confidentiality and protect the identity of the individuals affected and of all those taking part in the process.

- 33.6. AIESEC aim to provide a safe environment for all our stakeholders to develop themselves in by providing an adequate working environment to ensure all our stakeholders are not being discriminated by race, colour, gender, sexual orientation, creed, and religion, national, ethnic and social origin, age, their life put at risk or where they would be harassed.
- 33.7. Applicability
- 33.8. The Protocol will be applicable to all people who work for & with AIESEC. This includes all EP, and all levels within AIESEC members.
- 33.9. The sphere considered for any mode of harassment will be the work centre; consequently, if cases of harassment should occur outside the workplace, proof must be provided that the situation is directly work-related (for example, during global exchange products, LC or MC term, conferences or events).

34. Concepts

- 34.1. Sexual harassment
- 34.2. Sexual Harassment is any conduct of a sexual nature, whether verbal or physical, with the purpose of infringing or that infringes on the dignity of a person, particularly when it generates an intimidating, derogatory or offensive environment.
- 34.3. Sexual harassment is distinguished from freely accepted and reciprocal advances to the extent that sexual harassment is unwanted by the person object of the said advances. As an example, and without excluding or limiting other aspects, the types of conduct described below could be considered sexual harassment.
- 34.4. Conduct understood as sexual harassment
- 34.5. Verbal conduct can be classified as unwelcome sexual insinuations, propositions or pressure to enter into sexual intercourse, insistence to take part in social activities outside the workplace once an individual has clearly stated that the said insistence is inappropriate and unwarranted; offensive flirting; insinuating, indirect or obscene comments; unwanted telephone calls; jokes or comments on a person's sexual appearance.
- 34.6. Nonverbal conduct can be classified as Exhibition of sexually suggestive or pornographic photographs, of objects or texts, indecent looks, whistles or gestures; offensive letters or e-mail messages with sexual contents.
- 34.7. Physical conduct - can be classified as deliberate and unwanted physical contact, unwanted hugs or kisses, excessive and unnecessary physical nearness.

35. Types of sexual harassment

- 35.1. Two types of sexual harassment can be distinguished based on whether the above indicated behaviour implies an element of coercion or not.
- 35.2. "Quid pro Quo Harassment" This consists in forcing the victim to choose between accepting sexual advances or losing/seeing reduced certain work benefits or conditions that affect that person's access to professional training, employment, promotion, salary

or any other decision connected with these issues. As this behaviour implies abuse of authority, the individual involved will have the power, whether directly or indirectly, to provide or refuse certain work benefits or situations.

- 35.3. “Environmental Harassment” The subject involved in the harassment creates a work environment that is intimidating, hostile, derogatory, humiliating or offensive for the victim, due to unwelcome attitudes and behaviour of a sexual nature. This may involve any stakeholders involved with AIESEC, including employees of the company organizations that we work with, host family, etc., regardless of their position or status, or third persons with access to the Branch.
- 35.4. Sex and/or gender related harassment: Any conduct, based on a person’s sex, gender and/or sexual orientation, with the purpose of infringing or that infringes on the dignity of the person and generates an intimidating, derogatory or offensive environment.
36. Conduct understood as sex related harassment
 - 36.1. Below is a list of examples of behaviours or conducts that, if conducted in relation to a person’s sex/gender or sexual orientation and with the intention of infringing against a person’s dignity, without excluding or limiting other aspects, could be considered sex-related harassment:
 - 36.1.1. Ignoring or excluding a person
 - 36.1.2. Unfair or biased assessment of a person’s work.
 - 36.1.3. Assigning tasks or work below a person’s professional capacity or skills.
 - 36.1.4. Explicit or implicit behaviour aimed at making decisions on a person’s access to professional training and job scope, to the continuity of employment, salaries and/or subsidies or any other decision on these issues.
 - 36.1.5. Unfavourable treatment due to pregnancy or maternity situations.
 - 36.1.6. Stipend variation for professionals with the same responsibilities.
 - 36.2. Psychological harassment (Mobbing)
 - 36.3. Mobbing, “moral harassment at the workplace” or “psychological harassment at the workplace” are terms used to describe a situation where the behaviour of a person or group of people includes extreme, abusive and unfair psychological violence, in a systematic and recurring manner, over a prolonged period of time, against another person at the workplace and that may infringe on that person’s dignity. It must be stated that certain hostile actions may take place occasionally in the workplace, although, to be considered psychological harassment they must be, as stated above, systematic, habitual, over long periods of time and targeting one specific individual. Therefore, psychological harassment must not be confused with situations of work-related pressure or conflict. The latter refers to situations where there are disagreements, given that differences of opinion, discussions or eventual conflicts may arise in the workplace. Psychological harassment, on the other hand, consists in a malicious, systematic and sustained attack against a specific person.
 - 36.4. Conduct understood as psychological harassment (Mobbing)

- 36.5. Below is a list of examples of specific behaviours that, if they comply with the definition indicated in the previous point, may be considered psychological harassment at the workplace, without excluding or limiting other aspects.
- 36.6. Harassment based on organisational measures:
 - 36.6.1. Forcing a person to perform tasks that go against their conscience.
 - 36.6.2. Offensively judging a person's performance, concealing that person's efforts and skills.
 - 36.6.3. Questioning and disavowing a person's decisions.
 - 36.6.4. Not assigning any tasks, or assigning pointless or degrading tasks.
 - 36.6.5. Refusing or concealing the means to perform a task, or providing incorrect data.
 - 36.6.6. Assigning tasks that are clearly above the skills or qualifications of the person, or that require qualifications far below those held by the person.
 - 36.6.7. Giving contradictory or impossible orders.
 - 36.6.8. Manipulating work tools (for example, deleting computer files).
 - 36.6.9. Stealing belongings, documents, tools, etc.
 - 36.6.10. Threatening or putting pressure on the people who support the person being harassed.
 - 36.6.11. Manipulating, concealing, returning a person's correspondence, calls and messages.
 - 36.6.12. Refusing or complicating access to permits, courses, activities, etc.
- 36.7. Harassment based on reducing communication possibilities:
 - 36.7.1. Changing people to a different place to separate them from colleagues (isolation).
 - 36.7.2. Ignoring the presence of a person.
 - 36.7.3. Not speaking to a person.
 - 36.7.4. Restricting colleagues from speaking to a person.
 - 36.7.5. Not allowing a person to express his/her views.
 - 36.7.6. Avoiding all visual contact.
 - 36.7.7. Eliminating or restricting available means of communication (telephone, email..)
 - 36.7.8. Activities that affect the physical or psychological health of the victim:
 - 36.7.8.1. Threats or physical aggression.
 - 36.7.8.2. Verbal or written threats.
 - 36.7.8.3. Shouting at or insulting a person.
 - 36.7.8.4. Threatening telephone calls.
 - 36.7.8.5. Provoking a person, forcing a person to react emotionally.
 - 36.7.8.6. Intentionally generating expenses to affect the person.
 - 36.7.8.7. Damaging a person's workplace or belongings.
 - 36.7.8.8. Requiring a person to perform jobs that are dangerous or damaging for a person's health.
 - 36.7.9. Criticising a person's private life or an individual's personal or professional reputation.

- 36.7.9.1. Manipulating an individual's personal or professional reputation through spreading rumours, degrading remarks or ridiculing an individual.
- 36.7.9.2. Making it understood that a person has psychological problems, trying to make them go for a psychological examination or diagnosis.
- 36.7.9.3. Making fun of gestures, voice, physical appearance, disabilities, giving people nicknames, etc.
- 36.7.9.4. Criticising a person's nationality, political or religious attitudes and beliefs, private life, etc.

37. PROTOCOLS FOR RESOLUTION

- 37.1. Incident report: Any case detected must be reported in writing format (email, letter) by the person affected or by a third party who is aware of any case of sexual harassment, sex-related harassment and/or psychological harassment. The said person must identify him/herself.
- 37.2. Anonymous notices will not be taken into consideration due the possible necessity of conducting interviews.
- 37.3. The written notice will be sent by email, or by any other means that provide proof of delivery, to anyone as specified in the Case Solving Flow.
- 37.4. In case of not knowing who composes the entity's Ethics Sub-committee the person reporting the case can forward the incident to its AIESEC Local or Member Committee.
- 37.5. An investigation will always take place regardless of the data provided in the report, although it must be stressed that the investigation will take less time and will be more efficient if as much information and details as possible are included in the report. Consequently, we recommend that the report should include the following information, at least:
 - 37.5.1. The people involved.
 - 37.5.2. Types of conduct.
 - 37.5.3. Dates and places where the said behaviour took place
 - 37.5.4. Possible witnesses.
 - 37.5.5. Identification of the potential harassment victim.

38. The Committee consists of:

If case is reported on a local level

- 38.1. Local Committee President and LCVP Membership Experience.
- 38.2. One member of the SC as agreed by both parties
- 38.3. At Least one member of the Ethics Committee should be a female (if a complaint is filed by a female) or male (if a complaint is filed by a male).
- 38.4. For exchange related cases: ECB Chair can be included.

If case is filed on a national level

- 38.5. 2 ESC members as agreed by both parties
- 38.6. 1 Alumni/SG member

- 38.7. At Least one member of the Ethics Committee should be a female (if a complaint is filed by a female) or male (if a complaint is filed by a male).
- 38.8. Every case received should be investigated by the Committee and reported in the guidelines stated on this document.
- 38.9. The country law, if more strict, will be used for guidance and applicability in dealing with harassment cases.
- 38.10. In cases related to women, Protection of Women Against Harassment At The Workplace Act of 2010 will be used for guidance.
- 39. Incident investigation protocol
 - 39.1. The Committee will deal with each case individually and will guarantee that the people affected are heard and supported at all times, as they may be going through a delicate situation, even isolation.
 - 39.2. With this in mind, the Committee may conduct interviews or use other investigation techniques in relation to any of the parties involved, witnesses or third parties who may provide useful information. Every interview should be outputted, and if needed signed and kept for further issues.
 - 39.3. The main objective of an interview is to discover the situation of the affected parties and, among other issues:
 - 39.3.1. Whether there is or has been a case of workplace harassment, its features, reasons, the phase it is in, etc.
 - 39.3.2. Who is considered to be embarking on the said harassment behaviour and the hierarchic relationship that exists.
 - 39.3.3. The situations in which the harassment takes place. Whether it takes place in the presence of other colleagues and, if so, how they reacted.
 - 39.3.4. If the case has been reported to a superior; how (verbally or in writing) and what response was given.
 - 39.3.5. To what extent the situation has affected the health of the person, including whether any specialist assistance has been required or whether the person has been on sick leave in recent months and for what reasons.
 - 39.3.6. Whether other colleagues have or have had similar problems with a view to obtaining additional information from them.
 - 39.4. The interviews will be conducted in accordance with the following rules
 - 39.4.1. If the Committee should decide to interview the harassed person and the person reported together; the said interview may only take place if both parties provide their express consent.
 - 39.4.2. Either of the parties will be granted an interview on request.
 - 39.4.3. All parties involved have the right to obtain assistance from representatives or advisors.
 - 39.5. Confidentiality and protection

- 39.6. The intention is that the procedure should be as speedy and efficient as possible and that the privacy, confidentiality and dignity of the people affected should be protected at all times.
- 39.7. A strict level of confidentiality will be maintained throughout the entire procedure, and all internal investigations will be performed with tact and due respect to both the person reporting the case, the victim – who may not receive any unfavourable treatment due to the case - and to the person reported, whose guilt will not be presumed.
- 39.8. All people involved in the process will be under a commitment to confidentiality
- 39.9. The unauthorised dissemination of data of any nature in relation to the procedures will be considered a breach of contract and will be subject to disciplinary penalties.
- 39.10. Preventive measures: With a view to preventing and avoiding behaviours that may be considered as harassment at the workplace, AIESEC will disseminate this Protocol through:
 - 39.10.1. AIESEC online platforms.
 - 39.10.2. Any other means through which the said objective can be achieved.
- 39.11. AIESEC will encourage specific training of all members of its organisation on sexual harassment, sex-related harassment and psychological harassment. Moreover, AIESEC will provide appropriate training for any members of its organisation who hold any type of responsibility in the procedures implemented for reporting the above mentioned types of harassment as a part of induction into the organisation.
- 39.12. Furthermore, AIESEC is committed to promoting respect and consideration among all its collaborators, preparing documents and performing any other action considered necessary to fulfil the purpose of this Protocol.
40. Sanctions & disciplinary actions
 - 40.1. For Involved parties: If the investigation concludes that an offence has been committed, it must be decided what the appropriate course of disciplinary action is. It should be considered by the committee, among other things, the context in which the conduct occurred, whether the perpetrator had a history of previous misconduct and the level of harm caused. No case should be concluded with no follow up action, being it dismissal or disciplinary. Disciplinary measures can consist of warnings, penalties and/or direct dismissal from the organisation.
 - 40.2. If the perpetrator is disciplined but not dismissed, measures should be taken to both protect the victim in future and from retaliation, exposing, discomfort - And ensure there is no repeated misconduct.
 - 40.3. If the perpetrator is dismissed, AIESEC should do so through a formal meeting, and make sure all documents, interviews, and evidence are kept under the Ethics Sub-committee in case any future legal action is taken by any side.
 - 40.4. If the Victim requests, AIESEC is responsible to assist in filling a legal/police complaint against the perpetrator, being available for requests to be responded by the ESC.
41. False Testimony
 - 41.1. In case it is discovered that no case of harassment, in any of its manifestations, has existed in relation to a claim and if it is considered that the claim has been presented in

bad faith; the relevant disciplinary measures will be taken. Also, in case any party also presented an invalid report, or lied to protect or hide information.

- 41.2. Act of Wrongful Termination
- 41.3. Any cases of wrongful termination need to be implied from the HR policy.
- 41.4. Termination for having filed a complaint to the National Ethics Committee.

42. Cases involving AIESEC Interns

Cases that involve AIESEC Interns will first be passed on to the ECB. Only if the ECB feels that the case is beyond its purview, then the National Ethics Committee will take over the investigation.

43. Cases of Financial Irregularities:

- 43.1. Hiding of information of Bank/Cash flow of the LC or the assets of the LC by any member in the Local Committee including the LCP or LCVP F.
- 43.2. Money Embezzlement or theft from LC or MC Bank account.
- 43.3. Apart from the cases categorized above in the document, the National Ethics Committee shall ensure call-to-action for any case reported to it.
- 43.4. Cases such as discrepancy in and/or miscarriage of LCP or MCP Election process will be directly handled by the National Ethics Committee. However, the Whistleblowing Mechanism shall allow anyone to Blow the Whistle in such circumstances.

44. IMPLICATIONS: The MCP of AIESEC Pakistan, if and when proved guilty of wrongdoing, shall undergo an impeachment process as mentioned in the National Compendium.

- 44.1. No impeachment motion has to be passed if the MCP is proven guilty of wrongdoing by the National Ethics committee and an extraordinary meeting has to be convened with a notice of one week.
- 44.2. The National Ethics Committee shall decide if the MCP will be suspended or not and the duration of the suspension shall also be determined by the National Ethics committee.
- 44.3. The MCP shall have an opportunity to present her/his case at such a meeting.
- 44.4. The Impeachment Committee will reach a final decision on the impeachment proceedings.
- 44.5. The Impeachment Committee will comprise of Member Committee Vice Presidents, Local Committee Presidents and Chair of Supervisory Group.
- 44.6. If the MCP wishes to appeal the decision of the National ethics committee within 5 days of the verdict being given, the case will be forwarded to the Global ethics committee and the impeachment meeting will be postponed until after the verdict of GSC.
 - 44.6.1. Suspension:
 - 44.6.2. The National Ethics Committee shall decide if the individual should be suspended during the investigation of the case and the duration.
 - 44.6.3. Dismissal:
 - 44.6.4. Dismissal of the individual would mean expulsion from the organization.
 - 44.6.5. In case of wrongdoing being proved, the individual shall be immediately dismissed from the organization.

- 44.6.6. In case of Financial Irregularities, the wrongdoer shall have to pay to the Local Committee/ Member Committee the amount of money involved in the wrongdoing, in addition to getting expelled.
- 44.6.7. In case of Operational Irregularity, the wrongdoer shall have to pay to the Local Committee/ Member Committee/ complaining party the amount of money involved in the wrongdoing, in addition to getting expelled.
- 44.6.8. The decision as to whether the case should be reported to the police or judicial system of the country lies with the National Ethics Committee.
- 44.6.9. In cases where MC VP or LCP have been proved of wrongdoing, the MCP will issue the dismissal mail.
- 44.6.10. In case of Miscarriage of the Election process, the wrongdoer shall be immediately expelled, and the entire process shall begin again. Any person connected with the wrongdoer (in the wrongdoing) shall also be expelled from the organization.
- 44.6.11. Any person dismissed from the organization due to ethics violation shall not be granted LLC/Alumni status.
- 45. Fake cases: If a person is found guilty of putting a fake case, the member will be terminated from the organisation immediately.
- 46. Multiple Cases: In a situation where there are multiple cases from representatives of an LC, it will trigger investigation of the LC's culture which will be led by MCVP MXP along with the ESC Chair.
- 47. MANAGEMENT OF CASES:
 - 47.1. All cases should be recorded for reference and should be kept confidential by the National Ethics Committee.
 - 47.2. All the cases shall be stored on a drive folder only accessible to MCP and the MC Ethics Responsible in a chronological order.
- 48. LAWS OF THE LAND
 - 48.1. AIESEC is registered in Pakistan as a society under the Societies Registration Act XXI of 1860
 - 48.2. Cases that fall under the purview of Criminal Act will be subject to the Law of the land under the discretion of the National Ethics Committee.
 - 48.3. Cases that fall under the purview of Sexual Harassment will be subject to the Law of the land and all proceedings shall be carried out according to The Protection against Harassment of Women at Workplace Act, 2010.
- 49. Statute of Limitations:
 - 49.1. Statutes of limitations are laws passed by legislative bodies in common law systems to set the maximum time after an event within which legal proceedings may be initiated.
 - 49.2. When the period of time specified in a statute of limitations passes, a claim might no longer be filed, or, if filed, may be liable to be struck out if the defence against that claim is, or includes, that the claim is time barred as having been filed after the statutory limitations period. When a statute of limitations expires in an ethical case, the National Ethics Committee no longer has further investigation.

- 49.3. The statute of limitations i.e. the maximum time limit to file an ethical case against any unethical activity will be in the next 365 days from the exact date, unethical activity took place.
- 50. Role of National Ethics Committee post investigation: Role of the National Ethics Committee post investigation is to give either a verdict or/and recommendation based on the specific case.
- 50.1. The verdict given by the National Ethics Committee needs to be followed in the next 10 days where else following the recommendation depends on the discretion of the LC/LCP. If the verdict is not followed within 10 days, the LC will be applicable to pay a mandate fine while following the mandate in the next 10 days post the given time frame. If the verdict is not followed within the next 10 days apart from the given time frame in verdict, the LC will be applicable to pay a fine of PKR 25,000.